

Court No. - 3

Case :- WRIT - C No. - 40075 of 2023

Petitioner :- Vijay Shankar Rai

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajeet Kumar Singh, Pankaj Kumar Rai

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

It has been argued by the learned counsel for the petitioner that without issuance of provisional notice, the final assessment was done on 27.4.2022. Thereafter, the petitioner represented on 22.5.2022. He, therefore, states that the assessment was being done in most irregular manner.

Learned counsel for the Electricity Department shall take instructions in the matter by the next date.

Put up this case as fresh on 21.12.2023.

Till the next date of listing, no coercive action shall be taken against the petitioner.

Order Date :- 22.11.2023

Kuldeep

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Learned counsel for the Electricity Department prays for and is granted two weeks' further time to seek instructions.

Place this case on 17.1.2024 as fresh. Interim order, if any, shall continue till the next date of listing.

Order Date :- 21.12.2023

GS

(Shekhar B. Saraf, J.)

(Siddhartha Varma, J.)

Court No. - 21

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Respondent :- State Of U.P. And 3 Others

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Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. The petitioner has assailed the recovery citation dated 20.08.2023 issued by respondent No.2 for recovery of electricity dues in a case of theft of electricity.
2. Shri Udit Chandra, counsel appearing for the respondent-Electricity Department states that the impugned recovery has been withdrawn and the respondents will pass fresh assessment order after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. A communication sent in this regard by Executive Engineer to the petitioner dated 16.01.2024 has also been placed before us.
3. Accordingly, no further order is required to be passed in the instant matter.
4. The petition stands **disposed of** accordingly.

Order Date :- 17.1.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)